

**JUSTIFICATION REVIEW DOCUMENT
FAR Part 6 Justification and Approval
for Other than Full and Open Competition**

Program/Equipment: Warehouse 3 HVAC Replacement

Authority: Title 10 United States Code (U.S.C.) §3204(a)(1) as implemented in Federal Acquisition Regulation (FAR) 6.103-1(c)(2)(i), Substantial duplication of cost to the Government that is not expected to be recovered through competition.

Amount: [REDACTED]

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Control Number: MVN-26-0005

Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager/Program Executive Officer:

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Chief Logistics Manager

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FAR Part 6 Justification and Approval for Other than Full and Open Competition

1. Requiring Activity:

U.S. Army Corps of Engineers, New Orleans District, Logistics Activity (Government or MVN)

2. Contracting Activity:

U.S. Army Corps of Engineers, New Orleans District, Contracting Division, Projects West Branch

3. Description of Action:

This Justification and Approval requests approval to award a new [REDACTED] noncompetitive, Firm-Fixed-Priced (FFP) definitive contract to replace the HVAC system in Warehouse 3 building at the headquarters campus of the U.S. Army Corps of Engineers, New Orleans District. The solicitation number is W912P826QA012. The contract will be fully funded using appropriate Revolving funds. As discussed below, the only responsible source capable of providing this highly specialized service without substantial duplication of cost to the Government that is not expected to be recovered through competition and unacceptable delays in fulfilling the agency's requirement is as follows:

Company Name: Building Control Systems LLC (BCS)

CAGE Code: 31YX6

Unique Entity ID: FSQ9MC6M68X9

Address: 878 Hickory Ave, Harahan, LA 70123.

4. Description of Supplies/Services:

The New Orleans District requires the installation of six new 4-ton Energy Star Certified heat pump split systems in Warehouse 3. The Government does not have plans or drawings of the existing HVAC system. Due to the unique layout of the warehouse, the Government needs a contractor with knowledge of the existing HVAC system to limit complications and avoid escalated costs.

Period of Performance (POP)	Estimated Value
15 APR 2026 thru 15 JUL 2026	[REDACTED]

5. Authority Cited:

The statutory authority requested for use of other than full and open competition is Title 10 United States Code (U.S.C.) §3204(a)(1) as implemented in Federal Acquisition

Regulation (FAR) 6.103-1(c)(2)(i) & (ii), Only one responsible source and no other supplies or services will satisfy agency requirements. Building Control Systems is the only responsible source for the HVAC Replacement for Warehouse 3.

6. Reason for Authority Cited:

Background: The current HVAC system was installed by Building Control Systems LLC (BCS) in January 2007. The competitive nature of the original contract award in 2007 is unknown. No plans or as-builts were provided to the Government following installation of the previous system. Additionally, BCS has performed all maintenance and repairs to the current system. Previously, 8(a) vendors subcontracted all Warehouse 3 HVAC system work to BCS.

Justification: Due to the multiple phases in which Warehouse 3 was constructed, attic spaces are not open or readily accessible to accommodate investigative site visits prior to a competitive procurement. BCS is the only vendor with nearly 20 years of knowledge of the current system's layout in the uniquely designed building, its performance capabilities, and how it can be adapted to the new HVAC without the expense of significant investigation work. A direct award to BCS represents the most direct and efficient path to completion of the mission requirements, ensuring the Government does not pay for discovery/investigative work that has already been implicitly performed. BCS is the only responsible source capable of providing this highly specialized service without substantial duplication of cost to the Government that is not expected to be recovered through competition and unacceptable delays in fulfilling the agency's requirement.

Alternative 1: 8(a) Sole Source. The first alternative considered is to award an 8(a) Sole Source Contract and recommend they use BCS. The 8(a) will ultimately get the lowest and quickest proposal from BCS, as they will not require extensive investigation in order to provide competitive pricing. The concern with this approach is compliance with FAR 52.219-14 Limitations on Subcontracting. IAW the FAR, the 8(a) is required to complete at least 50% of the work themselves or subcontracted with a similarly situated contractor. BCS is not in the 8(a) Program and would be conducting 100% of the work onsite. This would make the 8(a) contractor noncompliant. It is not feasible to implement Alternative 1.

Alternative 2: Competitive Total Small Business Set-aside. The second alternative considered is to solicit this requirement as a Total Small Business Set-aside. This action would require the Government to make this award in 2 phases, the first being investigation due to the lack of as-builts of the current system and unique design of the building, the second being the replacement. The additional investigation is in excess of our minimum needs and the cost would exceed the budget limitations for the current year. The time delay to accommodate investigation is also unacceptable as we are quickly approaching summer months in Southeast Louisiana and the replacement to

occur within the next month. Given the extended time and increased budget, it is not feasible to implement Alternative 2.

Impact if not approved: BCS is the only responsible source for this action because they installed the current HVAC system, have nearly 20 years of experience with this system, knowledge of the unique design of the building and system design/layout, and can execute with the requirements of our mission without substantial duplication of cost to the Government that is not expected to be recovered through competition and unacceptable time delays. As discussed above, no other supplies and services will satisfy agency requirements. Failure to procure BCS's supplies and services for the HVAC Replacement for Warehouse 3 will result in substantial duplication of cost and unacceptable delay if this justification is not approved. Failure to approve the J&A would force MVN to incur unacceptable delays with the replacement with unnecessary investigation of the current HVAC system, adding significant and unbudgeted cost. BCS's knowledge of the HVAC system's layout constitutes a unique and specialized expertise that cannot be replicated without significant cost and time.

7. Efforts to Obtain Competition:

The Contracting Officer will publish the Notice of Intent to Sole Source required by FAR 5.201 and any bids or proposals received shall be considered.

- a. Effective competition: Competition is not expected as BCS, the incumbent, is the only contractor with knowledge of the current system's layout.
- b. Subcontracting competition: Subcontracting is not expected.

8. Actions to Increase Competition:

Market research will be completed before future requirements to increase competition before any subsequent acquisition of the supplies or services.

9. Market Research:

Market research was conducted by Kevin Calico, Facilities Operation Specialist, and Taylor Brandon, Contract Specialist. Requirement is a commercial service valued at approximately [REDACTED] and will be procured through FAR Part 12 – Acquisition of Commercial Products.

- NAICS Code: 238220 - Plumbing, Heating, and Air-Conditioning Contractors
- PSC: J041 - Maintenance, Repair and Rebuilding of Equipment: Refrigeration, Air Conditioning, and Air Circulating Equipment

The scope of work listed is for the upgrading of the HVAC system in the building: Install six new 4-ton Energy Star Certified heat pump split systems in Warehouse 3. Units will be suspended above the ceiling and ducted with flex to each area to control

the humidity and space temperature. Condensers will be set on side of the building.

Techniques and methods utilized to conduct Market Research include:

- Historical acquisition information
- Review of Government and commercial databases
- Review of catalogs
- Review of source lists
- Contact with the requestor

As a result of this market research, MVN concluded that while market research indicates other vendors can perform HVAC work, BCS is the only vendor with the specialized qualifications for this specific requirement.

BCS is the only responsible source for this action because they are the only source with decades of knowledge and experience with this particular HVAC system in this unique building that can provide the supplies and services required for this project without the substantial duplication of cost and unacceptable delays. No other supplies or services will satisfy agency requirements.

10. Interested Sources:

A Notice of Intent to Sole Source will be posted to SAM.gov. If any other offers are received, they will be considered; however, it is the Governments' intent to award a sole source contract to Building Control Systems, LLC.

11. Other Facts:

- a. Procurement history.

Contract Number	Contractor	Procurement Method	Amount (est.)	Period of Performance
W912P822P0011	Building Control Systems, LLC	Sole Source FAR 6.302-2	\$15,668.00	02 FEB 2022 – 28 FEB 2022

- b. Other facts. BCS has provided reliable service to MVN for many years with no performance concerns via the utilization of the GPC. This established track record of performance without issue is a significant non-cost factor that contributes to the "best value" determination for the Government. It demonstrates a low-risk, high-reliability partnership that is worth preserving for critical infrastructure.

Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

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James Syrdal
District Logistics Manager

12. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

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James Syrdal
District Logistics Manager

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price/cost to the Government for this contract action will be fair and reasonable. This determination will be made using independent Government estimate. As part of the basis, certified cost or pricing data will not be required.

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Karen Hargrave
Contracting Officer

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

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